

Traffic Violations Bureau

What To Do If You Receive A Traffic Ticket

INTRODUCTION

If you are issued a ticket for a non-criminal moving traffic violation in the five boroughs of New York City, it will be handled by a New York State Department of Motor Vehicles (DMV) Traffic Violations Bureau (TVB). This allows courts in these areas to concentrate on criminal cases, including driving offenses, such as driving while intoxicated and driving while suspended or revoked (aggravated unlicensed operation). However, TVBs do not handle parking violations.

If you plead not guilty to a traffic ticket in one of these TVB areas, your case will be heard by a DMV Administrative Law Judge (ALJ), an experienced attorney with special training in the Vehicle and Traffic Law. An ALJ has the authority to decide whether or not you are guilty and to set a fine if you are found guilty. An ALJ also has the authority to revoke or suspend your driver license and/or auto registration when required by law or when the ALJ believes it is in the interest of traffic safety.

Just as in traffic courts in other areas of the state, you may present witnesses and evidence at a hearing before an ALJ and be represented by an attorney.

IF YOU ARE ISSUED A TICKET

Follow the instructions on the ticket for the plea you wish to make, and act promptly.

If you don't answer the ticket in the time allowed, your driver license will be suspended. Later, you could be found guilty of the charge because of your failure to respond (a default conviction). Your license would be suspended for not paying the fine and a judgment would be entered against you.

Driving with a suspended license is a crime. A felony conviction may result in fines of up to \$5,000, jail, probation, or confiscation of your vehicle. As the number of suspensions you have increases, the penalties also increase. A driver is suspended for ticket not answered and fine not paid.

To Plead Not Guilty - Use the Traffic Ticket Pleas, Hearings and Payments online transaction [1] or read the "not guilty" instructions and check the "not guilty" box on the back of the ticket. Fill in the requested information, sign it, and mail the ticket to the Albany address listed. DMV will send you a letter telling you when and where to go for your hearing. If you are hearing impaired and require an interpreter, include a request for one when you mail your not guilty plea. An interpreter will be assigned to your hearing at no charge to you.

ATTEND YOUR HEARING

Hearings are open to the public. You may go to any TVB office to watch hearings so you know what to expect at yours.

To Plead Guilty - Use the Traffic Ticket Pleas, Hearings and Payments online transaction [1] or read the instructions and check the "guilty" box on the back of the ticket. Fill in the requested information, sign it and, , either mail it with your payment to the Albany address listed on the ticket or bring your payment to any TVB office. You may pay the fine and surcharge by Visa or Mastercard, or by a check or money order payable to the Commissioner of Motor Vehicles. Include the total fines and surcharges listed on the ticket for your violation(s).

You may not plead guilty by mail if the charge against you will result in license or registration suspension or revocation upon conviction (such as driving without insurance or a third speeding violation within 18 months). If you plead guilty to such a charge by mail, you will be notified that you must go to the TVB to answer the charge in person.

Your Address - If your mailing address is different from the address written on the front of the ticket, please write the correct mailing address in the space provided on the back of the ticket.

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You may request your traffic ticket hearing to be postponed and rescheduled to a different date. For the ticket's first postponement, the appropriate TVB must receive your request by mail at least 10 days before the date of the scheduled hearing. You may also make your postponement request in person at that office or by telephone at least one day before your hearing date. If it would be a second or subsequent postponement for the same ticket, your request must be made in person at the appropriate TVB office at least one day before your hearing date. Your request for a second or subsequent postponement also must include a "good cause," which is the reason you want the hearing rescheduled. Your "good cause" is subject to approval by a TVB Administrative Law Judge.

For a traffic ticket issued within New York City: Mail your request to the Albany, NY, address on your ticket - the office must receive your request at least ten days before the date of your scheduled hearing. You also may make your request in person at any TVB office in New York City, or telephone the TVB at (718)-488-5710, at least one day before the date of your scheduled hearing.

For a traffic ticket to be answered to a TVB outside New York City: Mail your request to the TVB office indicated on your ticket. The office must receive your request at least ten days before the scheduled hearing date. You also may make your request in person to that TVB office or by telephone at least one day before the date of your scheduled hearing

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You are considered innocent of the charge against you unless you are proven guilty at your hearing. You cannot be found guilty unless there is "clear and convincing evidence" that you committed the violation.

If you find it hard to understand English, you may bring someone to help you. Tell the ALJ, before the hearing starts, that someone who speaks your native language and English is there to interpret.

The ALJ will listen to sworn testimony from the police officer, who will explain why you were given the ticket. Then, you or your attorney may ask the officer questions. You also may bring witnesses to testify for you and written evidence. The judge may ask witnesses questions to better understand their testimony.

You do not have to testify but you may if you wish. You cannot be found guilty just because you do not testify.

When all of the evidence and testimony have been given, the ALJ will decide whether or not you are guilty. That decision will be based only on the evidence and testimony presented at the hearing and what the law states. If the ALJ decides the charge against you was not proven by clear and convincing evidence, you will be found not guilty. If the charge is proven and you are found guilty, the judge will set a fine. Your license or registration also may be suspended or revoked, depending on the violation and your overall driving record.

APPEALS

If you believe the ALJ's decision was incorrect based on the facts and the law, you may file an appeal. You can determine if you can file an appeal online [2] or download Traffic Violations Bureau Appeal form [3] (AA-33) from the DMV web site. The appeal form is also available at TVB offices. Read the instructions carefully. If you wish, your attorney may help you file the appeal. Remember to include a payment for the appeal fees. An appeal must be filed , and the appeal form and fees must be sent to:

DMV Appeals Board P.O. Box 2935 Albany, NY 12220-0935

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The State Department of Motor Vehicles Traffic Violations Bureaus handle parking tickets or violations by pedestrians. These are usually handled by a local parking violations bureau or court.

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The most common reasons your license may be suspended or revoked due to motor vehicle violations follow. Remember, your license also will be suspended if you do not answer a ticket or pay a fine. An ALJ has the authority to suspend or revoke your license for violations other than those listed.

Speeding/Misdemeanors If you commit three speeding and/or misdemeanor traffic violations within 18 months, your license will be revoked for at least six months.

New Driver Probation You are on license probation for six months after you pass a road test. If you are found guilty of committing any two moving violations during your probation period, your license will be suspended for 60 days. It will also be suspended for 60 days if you are found guilty of committing a single, more serious violation during the probation period, including speeding, tailgating, unauthorized racing or reckless driving. For violations committed on or after November 1, 2014 - If you are found guilty of committing a texting/cell phone violation during the probation period, your license will be suspended for 120 days. (For texting/cell phone violations committed between July 1, 2013 and October 31, 2014, your probationary license will be suspended for 60 days.)

If you are a holder of a probationary/junior license or learner permit and you are charged with a cell phone/texting violation on or after July 1, 2013, you cannot plead by mail or online. You must appear for a hearing in a TVB office.

Points Most traffic violations carry violation points. The points will be added to your record using the date the violation occurred, not the date you are found guilty. If your violation points in any 18-month period add up to 11 or more, your license may be revoked or suspended following a hearing.

The ALJ usually holds the point hearing immediately after you are found guilty of a violation that brings your total to 11 or more points in 18 months. On the following panel is a list of common violations and the number of points for each.

Taking a DMV-approved accident prevention course can reduce your point total by up to four points and reduce your auto liability and collision insurance premiums by 10% for three years. Ask for more information at any motor vehicle office.

Violation Points

LET US HEAR FROM YOU

We welcome your suggestions for improving TVB services and operations. Please write your suggestions and leave them at a TVB office or mail them to:

Director Office of Traffic Violations Department of Motor Vehicles 6 Empire State Plaza, Albany, NY 12228

Supervising ALJ Office of Traffic Violations 801 Axinn Avenue Garden City, NY 11530

TRAFFIC VIOLATIONS BUREAU ADDRESSES AND PHONE NUMBERS [4]

Additional information can be found at: Tickets received in New York City [1]

Mark J. F. Schroeder, Commissioner

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